

1.

CASE #	CASE NAME	HEARING NAME
CVRI2203209	WYNNE VS WYNNE	MOTION TO COMPEL

Tentative Ruling:

PROOF OF SERVICE: Proper

The motion to compel further supplemental responses to FROG 15.1 and 17.1 is **DENIED**.

Pursuant to CCP § 2030.090(b), the court orders, that to the extent James' require contact information for any of the witnesses identified in FROG 17.1 as well as the Tatums' contact information, the Tatums are to provide the contact information within 4 days rather than undergo the burden of supplementing the entire FROG 17.1 response.

This action involves an extremely acrimonious family dispute over the property located at 23650 Black Duck Drive, Canyon Lake, California (the "Black Duck Property"), which resulted in a settlement agreement reached on 7/14/2021, in a prior action between the parties, RIC 1701650 (the "Prior Action"). The terms of the parties' settlement in the Prior Action were embodied in a Binding Term Sheet (the "Binding Term Sheet"). Despite the settlement, the parties did not entirely resolve their dispute and continued to accuse each of violating the terms of the agreement, ultimately leading to the filing of this lawsuit.

On 8/1/2022, Plaintiffs/Cross-Defendants, Mark Wynne ("Mark")¹ and Kim Wynne ("Kim") (together the "Mark Wynne Parties") filed a Complaint against Defendants/Cross-Complainants, Timothy Wynne ("Timothy"), James Wynne ("James"), and A. Scott Kalkwarf ("Kalkwarf"), personal representative of the Estate of Frances Marsh ("Marsh") (together "the Marsh Parties") for breach of contract and breach of the covenant of good faith and fair dealing. In the Complaint, the Mark Wynne Parties allege that the Marsh Parties breached the Binding Term Sheet entered in the Prior Action by failing to provide Plaintiffs with clear title to the Black Duck Property. In response to the Complaint, the Marsh Parties filed an Anti-SLAPP motion, which the Court denied as frivolous.

On 12/8/2023, the Marsh Parties filed a Cross-Complaint against Kim and Cross-Defendants W. Scott Tatum, Jodi V. Schmaltz Tatum (the "Tatums"), and Joseph Sarnowski ("Sarnowski") (together the "Tatum Cross-Defendants"). The Tatum Cross-Defendants filed demurrers to both the Cross-Complaint and First Amended Cross-Complaint ("FACC") that were sustained with leave to amend. On 8/30/2024, the Marsh Parties filed a Second Amended Cross-Complaint ("SACC") for (1) breach of contract and (2) fraud, in which they allege, among other things, that the Mark Wynne Parties breached the Binding Term Sheet.

¹ Because multiple people share a last name, they are referred to "by their first names to avoid any confusion. No disrespect is intended." (*Rouland v. Pacific Specialty Ins. Co.* (2013) 220 Cal.App.4th 280, 283.)

Now, James moves to compel further responses to form interrogatories (“FROGs”) 15.1 and 17.1 from the Tatums. James argues that the court previously ordered the Tatums provide supplemental responses to FROGs 15.1 and 17.1 but the supplemental responses are still deficient and evasive.

In opposition, the Tatums argue the responses are all code compliant and contain proper objections. The Tatums state the motions are the result of James not liking the responses, rather than an issue of code compliance.

In reply, James appears to provide hypothetical responses to FROGS 15.1 and 17.1 that the Tatums “...might have wanted to avoid providing document and witnesses identification, if it ever existed.”

Before filing a motion to compel a further response, the moving party must engage in a reasonable and good faith attempt to resolve informally each issue set forth in the motion and must file an appropriate declaration with the motion. (CCP §§ 2030.300(b), 2031.310(b)(2) and 2016.040.) The purpose of the meet and confer requirement is to force lawyers to reexamine their positions, and to narrow their discovery disputes to the irreducible minimum, before calling upon the court to resolve the matter. (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016-17.) The factors in determining whether a party made a “reasonable” and “good faith” attempt to resolve the issues informally may include the size of case, complexity of discovery, previous relations with opposing counsel, the nature of the issues, the type and scope of discovery requests, the time available before the motion filing deadline and the prospects for success of the meet and confer. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431.) A good faith meet and confer attempt requires more than just an attempt to persuade the objector of the error of his or her ways, it requires counsel to talk the matter over, compare their views, consult, and deliberate. (*Clemente v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Id.* at 1293.)

James satisfied the meet and confer requirement via a letter, emails, and a telephone call. (Declaration of Richard Lucal, ¶¶ 6-8.)

At issue are FROGs 15.1 and 17.1. On 12/8/2025, the court ordered the Tatums to supplement their responses to FROG 15.1(b) and (c) and 17.1. James now argues that “In their supplemental responses, the TATUMS failed to provide the 15(b) an (c) information for the factual allegations that they denied and failed to provide the required subpart information for 17.1.” (See James’ Motion, p. 3:17-19.) James does not attach the supplemental responses to the motion, and the motion merely states that, “...a more detailed discussion is included in the separate statement field herewith.” The separate statement is formatted in such a way that makes James’ position difficult to understand. This is further compounded by the failure to include the actual supplemental responses. That being said, each FROG at issue is addressed below.

James seems to make two arguments regarding why the supplemental response to FROG 15.1 is still deficient. First, James states the Tatums “...specifically chose to evade providing witness information by identifying the witnesses for each affirmative defense as ‘All of the parties to this lawsuit and their attorneys of record.’ “(See James’

Separate Statement, p. 14:25-15:9.) Referring to “all parties” to the lawsuit and their attorneys is sufficiently responsive to FROG 15.1(b). Because the parties can be contacted via their attorneys of record, the Tatums are justified in not providing the address or telephone numbers for each party. To the extent James is arguing that the Tatums intentionally excluded witnesses that should have been identified, the court cannot compel a further response based on James’ dissatisfaction with the response or belief that it is substantively incomplete.

Second, James appears to take issue with the fact that the supplemental responses only address affirmative defenses and not denial of material allegations. (See James’ Separate Statement, p. 15:10-13.) James does not identify which denied material allegations the Tatums failed to address. In opposition, the Tatums state their supplemental responses address the ten affirmative defenses and “seven denied material allegations.” The Tatums also fail to provide their supplemental responses. Without citation to the pleadings or further clarification of what James believes was omitted, it cannot be said that the supplemental response is not code compliant or warrants a further response.

There is no specific argument regarding how the supplemental responses to FROG 15.1(c) regarding identification of documents is deficient. Per the separate statement, the Tatums appear to have removed the references to CCP § 2030.230 and identify documents by name. This is sufficient.

For these reasons, the court DENIES the request to compel further supplemental responses to FROG 15.1(b) or (c). As James fails to support the argument regarding the failure to address the denial of material allegations or even identify any such denied material allegations, the court DENIES his alternative request for an “...order that any factual allegations in the Second Amended Cross-complaint which are not addressed in the above response are deemed admitted...” (See James’ Separate Statement, p. 16:1-6.)

The same issues with FROG 15.1 make analysis of FROG 17.1 difficult as well – particularly the failure to include the Tatums’ supplemental responses. James argues that the supplemental responses “essentially contain only one sentence factual responses” or refer to a single document, the Binding Term Sheet. (See James’ Separate Statement, p. 37:19-26.) As typed in the Separate Statement, the supplement response to FROG 17.1 appears sufficient. For each RFA, the Tatums address the factual reasoning for the denial, identify the names of witnesses, and refer to documents by title rather than rely on CCP § 2030.230. James’ argument amounts to his personal belief that there should be more facts, witnesses, and documents that support the Tatums’ denial. But as with FROG 15.1, the court cannot compel a further response based on James’ belief that information is being withheld. Unlike the initial response, the supplemental response responds to each subpart as required by FROG 17.1.

The only potential issue is the failure to provide an address and telephone number for the identified witnesses, as required by FROG 17.1(c). But the response is substantially compliant, and this hardly requires the Tatums to supplement the entire FROG 17.1 response. Pursuant to CCP § 2030.090(b), the court should order that to

the extent James' requires contact information for any of the witnesses identified in FROG 17.1 and the Tatums have said contact information, the Tatums are to provide the contact information within 4 days rather than undergo the burden of supplementing the entire FROG 17.1 response.

The court otherwise DENIES the request to compel a further supplemental response to FROG 17.1.

No sanctions are awarded to either party.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500987	VALDEZ VS GUERRERO GARCIA	MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET ONE

Tentative Ruling:

For RFPs, **GRANT** the motion as to nos. 8, 21, 22, 23, 29, 30, 39, and 40.

For FROGs, **GRANT** the motion as to no. 20.8(a), (b).

Deem the motion MOOT as to no. 12.1(d).

For SROGs, **GRANT** the motion as to nos. 15, 16, 17, 18, 19, 20, and 21.

Deem the motion MOOT as to no. 31.

Plaintiff to provide further responses to the granted requests and interrogatories within 20 days, along with the production of responsive documents and/or privileged logs. No sanctions.

This is an action for personal injury. Plaintiff Annelisse Gutierrez Valdez ("Plaintiff") alleges that she was traveling on I-215 on 10/12/23 when co-defendant Marco Antonio Guerrero Garcia ("Garcia") unsafely changed lanes and collided with the left side of Plaintiff's vehicle. Plaintiff filed this action on 2/12/25. The operative First Amended Complaint ("FAC"), filed 7/2/25, asserts a single cause of action for negligence against Defendants Garcia, Maritza Diaz Lopez ("Lopez"), Guerrero & Son Trucking, and Roadway Engineering & Construction Inc. (collectively, "Defendants").

Defendant/Cross-Complainant Roadway Engineering & Contracting, Inc. (erroneously sued as Roadway Engineering & Construction, Inc., "Defendant") filed a Cross-Complaint against Cross-Defendants Garcia and Lopez, individually and as d/b/a Guerrero & Son Trucking, asserting: (1) implied equitable indemnity; (2) declaratory relief; (3) contribution; and (4) apportionment. Trial is not set.